



NEW MEXICO ASSOCIATION OF REALTORS® — 2025  
ADDENDUM NO. \_\_\_\_\_  
BUYER BROKERAGE COMPENSATION  
INTENDED THIRD PARTY BENEFICIARY



**INTENDED USE OF FORM**

This form is to be used to amend the Purchase Agreement to provide that the Seller will pay all or some portion of the Buyer Brokerage's Compensation on behalf of the Buyer.

**IMPORTANT NOTE: Multiple Listing Service Rules prohibit a Buyer's Brokerage from collecting compensation from one source or multiple sources (Buyer, Seller and/or Listing Brokerage) in excess of the amount of compensation the Buyer has agreed to pay the Buyer's Brokerage in the Buyer Brokerage Agreement.**

This Addendum is hereby incorporated into and made part of the Purchase Agreement dated \_\_\_\_\_ between \_\_\_\_\_ ("Buyer") and \_\_\_\_\_ ("Seller") and relating to the following Property:

Address (Street, City, State, Zip Code) \_\_\_\_\_

Legal Description  
or see metes and bounds description attached as Exhibit \_\_\_\_\_, \_\_\_\_\_ Count(ies),  
New Mexico.

1. **BUYER BROKERAGE:** \_\_\_\_\_
2. **BUYER BROKER:** \_\_\_\_\_
3. **QUALIFYING BROKER AND LICENSE NO.:** \_\_\_\_\_
4. **COMPENSATION.** Seller agrees to compensate the Buyer Brokerage stated in Para. 1 of this Addendum compensation of \_\_\_\_\_ % of Purchase Price or \$ \_\_\_\_\_ plus applicable New Mexico Gross Receipts Tax or Other: \_\_\_\_\_ ("Compensation"). Compensation shall be due and payable to the Buyer Brokerage upon the Closing and Funding of the Property as defined in the Purchase Agreement and Seller hereby authorizes title company/agent to disburse Compensation directly to Buyer's Brokerage upon Closing and Funding of the Property. **Notwithstanding the foregoing, Seller shall be liable to Buyer Brokerage for Compensation if the Property does not Close and Fund due to Seller's breach of the Purchase Agreement.**

**Buyer Brokerage may not receive compensation from one or more sources that exceeds the amount or rate agreed upon in the Buyer Brokerage Agreement.**

5. **THIRD PARTY BENEFICIARY.** Seller hereby agrees that the Buyer Brokerage is an intended third-party beneficiary to the Purchase Agreement between Seller and Buyer, and Brokerage shall have the right to enforce the terms of this Addendum against Seller.
6. **INCORPORATION AND SURVIVAL.** All terms of the Purchase Agreement not specific to the transaction between Buyer and Seller shall be incorporated into this Addendum, including, but not limited to, the following terms: Attorney Fees, Mediation, Severability, Consent to the Electronic Transmission of Documents and to the Use of Electronic Signatures, Heirs and Assigns, Governing Law and Venue, Multiple Buyers, Authority of Signors, Entire Agreement and Addendum in Writing. This Addendum shall survive Closing of the Property.
7. **ADDENDUM PROVISIONS CONTROL.** If there is any conflict between the provisions of the Purchase Agreement and/or any earlier dated Addendum and this Addendum, the provisions of this Addendum shall control. The remaining,

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unchanged provisions of the Purchase Agreement and/or any previously dated Addendum shall remain in effect.



**ATTENTION BUYERS AND SELLERS**



The amount of compensation paid by a Buyer or Seller to any Brokerage is fully negotiable and is **NOT** dictated by MLS rules, the local, state or National Association of Realtors® or local, state or national law.

**BUYER(S)**

|                          |                       |               |               |
|--------------------------|-----------------------|---------------|---------------|
| _____<br>Buyer Signature | _____<br>Printed Name | _____<br>Date | _____<br>Time |
|--------------------------|-----------------------|---------------|---------------|

|                          |                       |               |               |
|--------------------------|-----------------------|---------------|---------------|
| _____<br>Buyer Signature | _____<br>Printed Name | _____<br>Date | _____<br>Time |
|--------------------------|-----------------------|---------------|---------------|

**SELLER(S)**

|                           |                       |               |               |
|---------------------------|-----------------------|---------------|---------------|
| _____<br>Seller Signature | _____<br>Printed Name | _____<br>Date | _____<br>Time |
|---------------------------|-----------------------|---------------|---------------|

|                           |                       |               |               |
|---------------------------|-----------------------|---------------|---------------|
| _____<br>Seller Signature | _____<br>Printed Name | _____<br>Date | _____<br>Time |
|---------------------------|-----------------------|---------------|---------------|

If additional signature lines are needed, please use NMAR Form 1150 – Signature Addendum